

IN THE SENATE

SENATE BILL NO. 1229

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO SINGLE COUNTYWIDE HIGHWAY DISTRICTS; AMENDING SECTION 40-1404A, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE ELECTION OF SINGLE COUNTYWIDE HIGHWAY DISTRICT COMMISSIONERS; AMENDING SECTION 34-702, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-702A, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-703, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-704, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-705, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-706, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-708, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-712, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-714, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-715, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 40-1404A, Idaho Code, be, and the same is hereby amended to read as follows:

40-1404A. ELECTIONS, TERMS AND SALARIES OF COMMISSIONERS IN CERTAIN COUNTYWIDE HIGHWAY DISTRICTS. (1) In countywide highway districts located in a county with a population of more than two hundred thousand (200,000) persons in which the voters have chosen to establish a countywide highway district at a previous election, the county shall be divided by the county commissioners immediately upon the effective date of this act into five (5) subdistricts which shall be as nearly equal in population as practicable. No precincts shall be divided. A highway district commissioner shall be a resident of the subdistrict which he represents. ~~Voters in each subdistrict shall vote only for one (1) candidate seeking to represent that each subdistrict.~~ County commissioners, mayors and city council members shall not be eligible to hold office as a countywide highway district commissioner. At the election held in 1998, commissioners representing subdistricts two and five shall be elected for two (2) year terms and commissioners representing subdistricts three and four shall be elected for four (4) year terms. Thereafter, all commissioners shall be elected for four (4) year terms. Any incumbent in office on the effective date of this act may complete the term to which they were elected and shall represent the subdistrict in which they reside. Any incumbent in office on the effective date of this act whose term

1 expires on January 1, 2000, shall retain that office until January 1, 2000,
 2 shall be assigned the subdistrict in which they reside by the county commis-
 3 sioners, which subdistrict shall be numbered one as provided in this section
 4 and that commissioner need not stand for election in 1998.

5 (2) A qualified voter of the countywide highway district shall be eli-
 6 gible to vote for a each of the countywide highway district ~~commissioner re-~~
 7 ~~siding in the elector's subdistrict commissioners~~, and the election shall
 8 be conducted as provided by Idaho statutes relating to holding general elec-
 9 tions at the county level.

10 (3) Beginning with the elections of 2026, the election of highway dis-
 11 trict commissioners in a highway district subject to the provisions of this
 12 section shall include primary elections pursuant to the provisions of chap-
 13 ter 7, title 34, Idaho Code.

14 (4) The highway commissioners shall take office on January 1 of the year
 15 immediately following their election, and each may be compensated in accor-
 16 dance with the provisions of section 40-1314, Idaho Code, or receive a salary
 17 not to exceed one thousand two hundred dollars (\$1,200) per calendar month
 18 with the exception of the president of the highway commissioners who may re-
 19 ceive a salary not to exceed one thousand four hundred dollars (\$1,400) per
 20 calendar month.

21 SECTION 2. That Section 34-702, Idaho Code, be, and the same is hereby
 22 amended to read as follows:

23 34-702. REQUIREMENTS FOR WRITE-IN CANDIDATES AT PRIMARY. (1) In addi-
 24 tion to possessing all other qualifications, in order to become a candidate
 25 of a political party at the general election, those candidates whose names
 26 are written in at the primary election must:

27 (a) Receive at least the following number of write-in votes at the pri-
 28 mary election:

29 (i) One thousand (1,000) for any statewide office;

30 (ii) Five hundred (500) for a congressional district office;

31 (iii) Fifty (50) for a legislative district office; or

32 (iv) Five (5) for a county office or a single countywide highway
 33 district office pursuant to section 40-1404A, Idaho Code; and

34 (b) File a declaration of intent for that office, pursuant to section
 35 34-702A, Idaho Code.

36 (2) Candidates who are required to file with the secretary of state
 37 shall pay the filing fee required for that office no later than the deadline
 38 for filing a declaration of intent pursuant to section 34-702A, Idaho Code,
 39 or shall file a petition pursuant to section 34-626, Idaho Code.

40 (3) No write-ins shall be allowed for judicial office.

41 SECTION 3. That Section 34-702A, Idaho Code, be, and the same is hereby
 42 amended to read as follows:

43 34-702A. DECLARATION OF INTENT FOR WRITE-IN CANDIDATES. (1) No
 44 write-in vote for any office in a primary, special, or general election shall
 45 be counted unless a completed declaration of intent form has been filed indi-
 46 cating that the person desires the office and is legally qualified to assume
 47 the duties of said office if elected.

1 (2) The declaration of intent for write-in candidates for federal,
2 state, or legislative district offices shall be filed with the secretary
3 of state no later than 5:00 p.m. on the eleventh Friday before the primary
4 election.

5 (3) The declaration of intent for write-in candidates for county
6 office, a single countywide highway district office pursuant to section
7 40-1404A, Idaho Code, or party precinct committeeman office shall be filed
8 with the county clerk no later than 5:00 p.m. on the ninth Friday before the
9 primary election.

10 (4) For a write-in candidate for president, the declaration shall in-
11 clude a certification of the write-in candidate's vice presidential and
12 presidential electors, all of whom must be qualified to serve in their re-
13 spective offices. The secretary of state shall prescribe the form for said
14 declarations.

15 (5) In those counties that utilize optical scan ballots, an elector
16 shall not place on the ballot a sticker bearing the name of a person or use any
17 other method or device, except writing, to vote for a person whose name is not
18 printed on the ballot.

19 SECTION 4. That Section 34-703, Idaho Code, be, and the same is hereby
20 amended to read as follows:

21 34-703. NOMINATION AT PRIMARY. (1) All political party candidates for
22 United States senator and representative in congress and all political party
23 candidates for elective state, district, single countywide highway district
24 pursuant to section 40-1404A, Idaho Code, and county offices, except can-
25 didates for judicial office, at general elections shall be nominated at the
26 primary elections, or shall have their names placed on the general election
27 ballot as provided by law, and shall comply with the provisions of this act.

28 (2) All candidates for judicial office shall be nominated or elected at
29 the primary election, as provided by section 34-1217, Idaho Code.

30 (3) Independent candidates shall not be voted on at primary elections.

31 SECTION 5. That Section 34-704, Idaho Code, be, and the same is hereby
32 amended to read as follows:

33 34-704. DECLARATION OF CANDIDACY. (1) Any person legally qualified to
34 hold such office is entitled to become a candidate and file a declaration of
35 candidacy. All political party candidates shall declare their party affili-
36 ation in their declaration of candidacy and shall be affiliated with a party
37 at the time of filing. A candidate shall be deemed affiliated with the po-
38 litical party if the candidate submits a party affiliation form along with
39 the declaration of candidacy to the appropriate filing official. The fil-
40 ing official shall reject any declaration of candidacy for partisan office
41 in a primary election from candidates who are not affiliated with a political
42 party. Candidates for nonpartisan office shall file during the period pro-
43 vided for in this section.

44 (2) Each political party candidate for federal, state, or legislative
45 district office shall file a declaration of candidacy with the secretary of
46 state's office between 8:00 a.m. on the thirteenth Monday before the primary
47 election and 5:00 p.m. on the twelfth Friday before the primary election.

(3) Each political party candidate for county office, single countywide highway district office pursuant to section 40-1404A, Idaho Code, or precinct committeeman office shall file a declaration of candidacy with the county clerk's office between 8:00 a.m. on the twelfth Monday before the primary election and 5:00 p.m. on the tenth Friday before the primary election.

(4) Candidates who file a declaration of candidacy under a party name and are not nominated at the primary election shall not be allowed to appear on the general election ballot under any other political party name or as an independent candidate.

(5) Independent candidates shall file their declaration of candidacy in the manner provided in section 34-708, Idaho Code.

(6) All information in declarations of candidacy shall be made publicly available upon request, except that the Idaho residential street address and telephone number of a judicial officer may be exempt from disclosure pursuant to sections 19-6202 and 74-106(30), Idaho Code.

SECTION 6. That Section 34-705, Idaho Code, be, and the same is hereby amended to read as follows:

34-705. WITH WHOM DECLARATIONS FILED. (1) All candidates for county offices and single countywide highway district offices pursuant to section 40-1404A, Idaho Code, whether political party candidates or independent candidates, and all political party candidates for precinct offices shall file their declarations of candidacy with the county clerk of their respective counties. All candidates for district, state and federal offices shall file their declarations of candidacy with the secretary of state.

(2) The secretary of state shall certify to the county clerks, no later than 5:00 p.m. on the tenth Friday before the primary election, the names of the political party candidates who filed for federal, state, and legislative district offices and are qualified for placement on the ballot.

(3) The secretary of state shall certify the name of a candidate being appointed by the appropriate central committee pursuant to section 34-714, Idaho Code, by no later than the next business day after the appointment is received in the secretary of state's office, if received after the certification of candidates to the county clerks under subsection (2) of this section.

SECTION 7. That Section 34-706, Idaho Code, be, and the same is hereby amended to read as follows:

34-706. NOTIFICATION TO PARTIES. Within three (3) days after the deadline for filing declarations of political party candidacy the county clerk shall notify the county central committee of each political party of the candidates who have filed for county offices, single countywide highway district offices pursuant to section 40-1404A, Idaho Code, and precinct offices under the party name and are qualified.

Within three (3) days after the deadline for filing declarations of political party candidacy the secretary of state shall notify the legislative district central committee of each political party of the legislative candidates who have filed under the party name and are qualified.

1 Within three (3) days after the deadline for filing declarations of po-
 2 litical party candidacy the secretary of state shall notify the state cen-
 3 tral committee of each political party of the candidates who have filed for
 4 federal and state offices under the party name and are qualified.

5 SECTION 8. That Section 34-708, Idaho Code, be, and the same is hereby
 6 amended to read as follows:

7 34-708. INDEPENDENT CANDIDATES. (1) No person may offer himself as an
 8 independent candidate at the primary election.

9 (2) Any person who desires to offer himself as an independent candi-
 10 date for federal, state, district, single countywide highway district pur-
 11 suant to section 40-1404A, Idaho Code, or county office may do so by com-
 12 plying strictly with the provisions of this section. In order to be recog-
 13 nized as an independent candidate, each such candidate must file with the
 14 proper officer as provided by section 34-705, Idaho Code, a declaration of
 15 candidacy as an independent candidate, during the period specified in sec-
 16 tion 34-704, Idaho Code. Such declaration must state that he is offering
 17 himself as an independent candidate, must declare that he has no political
 18 party affiliation, and must declare the office for which he seeks election.
 19 Each such declaration must be accompanied by a petition containing the fol-
 20 lowing number of signatures of qualified electors:

21 (a) One thousand (1,000) for any statewide office;

22 (b) Five hundred (500) for any congressional district office;

23 (c) Fifty (50) for any legislative district office;

24 (d) Five (5) for any county office or a single countywide highway dis-
 25 trict office pursuant to section 40-1404A, Idaho Code.

26 (3) Signatures on the petitions required in this section shall be veri-
 27 fied in the manner prescribed in section 34-1807, Idaho Code, on a form simi-
 28 lar to that used for recall petitions under chapter 17, title 34, Idaho Code,
 29 as prescribed by the secretary of state.

30 (4) If all of the requirements of this section have been met, the proper
 31 officer shall cause the name of each independent candidate who has qualified
 32 to be placed on the general election ballot, according to instructions of the
 33 secretary of state.

34 SECTION 9. That Section 34-712, Idaho Code, be, and the same is hereby
 35 amended to read as follows:

36 34-712. SAMPLE FORM FOR PRIMARY ELECTION BALLOTS. The secretary of
 37 state shall provide the sample form of the primary election ballot to each of
 38 the county clerks no later than the ninth Friday before the primary election.
 39 The sample ballot shall contain the proper political party candidates to be
 40 voted on within the county whose declarations were filed and certified in
 41 the office of the secretary of state with instructions for the placing of po-
 42 litical party candidates seeking the political party nomination for county
 43 offices, single countywide highway district offices pursuant to section
 44 40-1404A, Idaho Code, and precinct offices. If a county is within more than
 45 one (1) legislative district, the secretary of state shall provide a sample
 46 ballot for each legislative district that includes part of the county.

SECTION 10. That Section 34-714, Idaho Code, be, and the same is hereby amended to read as follows:

34-714. FILLING VACANCIES IN SLATE OF POLITICAL PARTY CANDIDATES OCCURRING PRIOR TO PRIMARY ELECTION. (1) Vacancies that occur before the primary election in the slate of candidates of any political party because of the death, disqualification for any reason, or withdrawal from the nomination process by the candidate shall be filled in the following manner if there is only one (1) candidate declared for that particular office:

(a) By the county central committee if the vacancy occurs for the office of precinct committeeman, ~~or for a county office, or a single countywide highway district office~~ pursuant to section 40-1404A, Idaho Code.

(b) By the legislative district central committee if the vacancy occurs for the office of state representative or state senator.

(c) By the state central committee if the vacancy occurs for a federal or state office.

The county and legislative district central committee shall fill the vacancy within fifteen (15) days from the date the vacancy occurred. The state central committee shall fill the vacancy within thirty (30) days from the date the vacancy occurred, but no later than 5:00 p.m. on the eighth Friday before the primary election.

Any political party candidate so appointed by the proper central committee must, in order to have his name on the primary ballot, file a declaration of candidacy and pay the required filing fee no later than 5:00 p.m. on the eighth Friday before the primary election.

(2) No central committee shall fill any vacancy that occurs after 5:00 p.m. on the eighth Friday before the primary election. Vacancies that occur after this date because of the death, disqualification for any reason, or withdrawal from the nomination process by the candidate shall be filled according to the provisions of section 34-715, Idaho Code.

(3) Vacancies that occur in a slate of candidates for precinct committeeman after 5:00 p.m. on the eighth Friday before the primary election shall not be filled.

SECTION 11. That Section 34-715, Idaho Code, be, and the same is hereby amended to read as follows:

34-715. FILLING OF VACANCIES OCCURRING BEFORE OR AFTER PRIMARY ELECTION. (1) Vacancies that occur after 5:00 p.m. on the eighth Friday before a primary election, or after the primary election but before 5:00 p.m. on the eighth Friday before the general election in the slate of candidates of any political party because of the death or disqualification for any reason of a candidate, except candidates for precinct committeeman, shall be filled in the following manner if there is only one (1) candidate declared from the political party for that particular office:

(a) By the county central committee if it is a vacancy by a candidate for a county office or a single countywide highway district office pursuant to section 40-1404A, Idaho Code.

(b) By the legislative district central committee if it is a vacancy by a candidate for the state legislature.

1 (c) By the state central committee if it is a vacancy by a candidate for
2 a federal or a state office.

3 (d) If the party candidate for a particular office dies or is disquali-
4 fied after 5:00 p.m. on the eighth Friday before the general election,
5 such candidate's name shall remain on the ballot. If the deceased or
6 disqualified candidate wins the general election, the resulting va-
7 cancy shall be filled pursuant to chapter 9, title 59, Idaho Code.

8 (2) The county and legislative district central committee shall fill
9 the vacancy within fifteen (15) days from the date the vacancy occurred. The
10 state central committee shall fill the vacancy within thirty (30) days from
11 the date the vacancy occurred, but no later than 5:00 p.m. on the eighth Fri-
12 day before the general election.

13 (3) Any political party candidate so appointed by the proper central
14 committee must, in order to have his name on the general ballot, file a dec-
15 laration of candidacy and pay the required filing fee no later than 5:00 p.m.
16 on the eighth Friday before the general election.

17 (4) Vacancies that occur in a slate of candidates for precinct com-
18 mitteeman after 5:00 p.m. on the eighth Friday before the primary election
19 shall not be filled.

20 SECTION 12. An emergency existing therefor, which emergency is hereby
21 declared to exist, this act shall be in full force and effect on and after its
22 passage and approval.